



**Royal Devon  
University Healthcare**  
NHS Foundation Trust

|                           |                                                                                                                                                                                                                  |
|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>The Authority</b>      | Royal Devon University Healthcare NHS Foundation Trust                                                                                                                                                           |
| <b>The Supplier</b>       | <i>[Insert name, address and, where applicable, the company number of the GP's practice]</i>                                                                                                                     |
| <b>Date of contract</b>   |                                                                                                                                                                                                                  |
| <b>Type of Services</b>   | Sexual Health Services Devon wide (excluding Plymouth City) Provision of Sub-Dermal Contraceptive Implant (SDI) Services and/or Provision of Intrauterine Device (IUD/IUS) Services in General Practice Settings |
| <b>Contract Reference</b> | RDU6065                                                                                                                                                                                                          |

This Contract is made on the date set out above subject to the terms set out in the schedules listed below ("**Schedules**"). The Authority and the Supplier undertake to comply with the provisions of the Schedules in the performance of this Contract.

The Supplier shall supply to the Authority, and the Authority shall receive and pay for, the Services on the terms of this Contract.

The Definitions in Schedule 4 apply to the use of all capitalised terms in this Contract.

**Schedules**

|                                    |                                         |
|------------------------------------|-----------------------------------------|
| <b>Schedule 1</b>                  | Key Provisions                          |
| <b>Schedule 2</b>                  | General Terms and Conditions            |
| <b>Schedule 3</b>                  | Information and Data Provisions         |
| <b>Schedule 4</b>                  | Definitions and Interpretations         |
| <b>Schedule 5</b>                  | Specifications A & B of the Services    |
| Error! Reference source not found. | Commercial Schedule                     |
| Error! Reference source not found. | Staff Transfer                          |
| <b>0</b>                           | N/A ( <del>Expert Determination</del> ) |

|   |                                   |
|---|-----------------------------------|
| 0 | Primary Care LARC Activity Report |
|---|-----------------------------------|

**Signed by the authorised representative of THE AUTHORITY**

|           |                     |            |               |
|-----------|---------------------|------------|---------------|
| Name:     | Arnya White         | Signature: | <i>awhite</i> |
| Position: | Procurement Manager |            |               |

**Signed by the authorised representative of THE SUPPLIER**

|           |       |           |       |
|-----------|-------|-----------|-------|
| Name:     | ..... | Signature | ..... |
| Position: | ..... |           |       |

## **Schedule 1**

### **Key Provisions**

#### **Standard Key Provisions**

#### **1 Application of the Key Provisions**

- 1.1 The standard Key Provisions at Clauses 1 to 7 of this Schedule 1 shall apply to this Contract.
- 1.2 The optional Key Provisions at Clauses **Error! Reference source not found.** to 12 of this Schedule 1 shall only apply to this Contract where they have been checked and information completed as applicable.

#### **2 Term**

- 2.1 This Contract shall commence on the Commencement Date and the Term of this Contract shall expire two (2) years from the Commencement Date. The Term may be extended in accordance with Clause 13.2 of Schedule 2 provided that the duration of this Contract shall be no longer than five (5) years in total, by extensions of 12 months each.

#### **3 Contract Managers**

- 3.1 The Contract Managers at the commencement of this Contract are:
  - 3.1.1 for the Authority:  
**Sue Smith, Head of SARC & Devon Sexual Health**  
[suejsmith@nhs.net](mailto:suejsmith@nhs.net)  
Royal Devon I University Healthcare NHS Foundation Trust
  - 3.1.2 for the Supplier:  
**[insert name and role]**.

#### **4 Names and addresses for notices**

- 4.1 Notices served under this Contract are to be delivered to:
  - 4.1.1 for the Authority:  
**Head of Procurement,**  
[rduh.procurement@nhs.net](mailto:rduh.procurement@nhs.net)  
**Head of SARC & Devon Sexual Health,**  
[rduh.primarycarequeries.dsh@nhs.net](mailto:rduh.primarycarequeries.dsh@nhs.net)
  - 4.1.2 for the Supplier:  
**[complete name and/or role and address]**.

#### **5 Management levels for escalation and dispute resolution**

- 5.1 The management levels at which a Dispute may be dealt with as referred to as part of the Dispute Resolution Procedure are as follows:

| Level | Authority representative                                                                                                                         | Supplier representative   |
|-------|--------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------|
| 1     | Sue Smith,<br>Head of SARC & Devon Sexual Health<br><a href="mailto:rduh.primarycarequeries.dsh@nhs.net">rduh.primarycarequeries.dsh@nhs.net</a> | <b>[Contract Manager]</b> |
| 2     | Tony Layton, Care Group Associate<br>Director, Specialist Services<br><a href="mailto:a.layton@nhs.net">a.layton@nhs.net</a>                     | <b>[insert role]</b>      |
| 3     | Head of Procurement<br><a href="mailto:rduh.procurement@nhs.net">rduh.procurement@nhs.net</a>                                                    | <b>[insert role]</b>      |

## 6 Order of precedence

6.1 Subject always to Clause 1.10 of Schedule 4, should there be a conflict between any other parts of this Contract the order of priority for construction purposes shall be:

6.1.1 the provisions on the front page of this NHS Contract for the Provision of Services (Contract Version);

6.1.2 Schedule 1: Key Provisions;

6.1.3 Schedule 5: Specification

6.1.4 Schedule 2: General Terms and Conditions;

6.1.5 **Error! Reference source not found.:** Commercial Schedule;

6.1.6 Schedule 3: Information Governance Provisions;

6.1.7 Schedule 4: Definitions and Interpretations;

6.1.8 the order in which all subsequent schedules, if any, appear; and

6.1.9 any other documentation forming part of the Contract in the date order in which such documentation was created with the more recent documentation taking precedence over older documentation to the extent only of any conflict.

6.2 For the avoidance of doubt, the Specification shall include, without limitation, the Authority's requirements in the form of its specification and other statements and requirements.

## 7 Application of TUPE at the commencement of the provision of Services

7.1 The Parties agree that when the Supplier commences the Services, TUPE and the Cabinet Office Statement shall **not** apply so as to transfer the employment of any employees of the Authority or a Third Party to the Supplier and the provisions of **Error! Reference source not found.** shall apply.

## **Optional Key Provisions**

### **8 Quality assurance standards ☒**

- 8.1 The standards listed in **Specifications A & B, section 3.3 (Training & Competence)** shall apply to this contract.

### **9 Different levels and/or types of insurance ☒ (only applicable to the Contract if this box is checked and the table sets out the requirements)**

- 9.1 The Supplier shall put in place and maintain in force the following insurances with the appropriate cover per claim:

| Type of insurance required | Minimum cover                     |
|----------------------------|-----------------------------------|
| Employer's Liability       | Appropriate cover                 |
| Public Liability           | Appropriate cover                 |
| Clinical Negligence        | Appropriate cover including CNSGP |

### **10 Inclusion of a Change Control Process ☒**

- 10.1 Any changes to this Contract, including to the Services, may only be agreed in accordance with the Change Control Process set out below:
- 10.1.1 This contract may be changed by agreement between the parties, which shall only apply if formally issued as a contract amendment by the Supplier's Procurement Department and agreed by the Supplier.
- 10.1.2 The contract amendment may take any reasonable form, including a letter, revised contract or manuscript amendment.

### **11 Termination for convenience ☒**

- 11.1 The Authority may terminate this Contract by issuing a Termination Notice to the Supplier at any time on six **(6) months'** written notice.
- 11.2 The Authority does not expect to use this right without careful consideration but it may be needed if funding becomes insufficient to continue the Services.
- 11.3 There shall be no termination sum or compensation if the Contract is terminated for convenience.

### **12 Right to terminate following a specified number of material breaches ☒**

- 12.1 Either Party may terminate this Contract by issuing a Termination Notice to the other Party if such other Party commits a material breach of this Contract in circumstances where it is served with a valid Breach Notice having already been served with at least two (2) previous valid Breach Notices within the last twelve (12) calendar month rolling period as a result of any previous material breaches of this Contract which are capable of remedy (whether or not the Party in breach has remedied the breach in

accordance with a Remedial Proposal). The twelve (12) month rolling period is the twelve (12) months immediately preceding the date of the third Breach Notice.

12.2 Material breaches include but are not limited to:

- 12.2.1 A breach of infection control regulations;
- 12.2.2 not using a suitably qualified clinician,
- 12.2.3 gross misconduct; or
- 12.2.4 negligence.

## **Schedule 2**

### **General Terms and Conditions**

#### **Contents**

1. Provision of Services
2. Premises, locations and access
3. Cooperation with third parties
4. Staff and Lifescience Industry Accredited Credentialing Register
5. Business continuity
6. The Authority's obligations
7. Contract management
8. Price and payment
9. Warranties
10. Indemnity
11. Limitation of liability
12. Insurance
13. Term and termination
14. Consequences of expiry or early termination of this Contract
15. Staff information and the application of TUPE at the end of the Contract
16. Complaints
17. Modern slavery and environmental, social and labour laws
18. Electronic services information
19. Change management
20. Dispute resolution
21. Force majeure
22. Records retention and right of audit
23. Conflicts of interest and the prevention of fraud
24. Equality and human rights
25. Notice
26. Prohibited Acts
27. General

## **1 Provision of Services**

- 1.1 The Authority appoints the Supplier and the Supplier agrees to provide the Services:
  - 1.1.1 promptly and in any event within any time limits as may be set out in this Contract;
  - 1.1.2 in accordance with all other provisions of this Contract;
  - 1.1.3 with reasonable skill and care and in accordance with any quality assurance standards as set out in the Key Provisions and/or the Specification;
  - 1.1.4 in accordance with the Law and with Guidance;
  - 1.1.5 in accordance with Good Industry Practice;
  - 1.1.6 in accordance with the Policies; and
  - 1.1.7 in a professional and courteous manner.
  - 1.1.8 In complying with its obligations under this Contract, the Supplier shall, and shall procure that all Staff shall, act in accordance with the NHS values as set out in the NHS Constitution from time to time.
- 1.2 The Supplier shall commence delivery of the Services on the Services Commencement Date.
- 1.3 The Supplier shall comply fully with its obligations set out in the Specification, including without limitation the reporting requirements.
- 1.4 The Supplier shall ensure that all relevant consents, authorisations, licences and accreditations required to provide the Services are in place at the Actual Services Commencement Date and are maintained throughout the Term.
- 1.5 If the Services, or any part of them, are regulated by any regulatory body, the Supplier shall ensure that at the Actual Services Commencement Date it has in place all relevant registrations and shall maintain such registrations during the Term.

## **2 Premises, locations and access**

- 2.1 The Supplier shall ensure the service:
  - 2.1.1 is delivered in a CQC-registered general practice premises.
  - 2.1.2 Is delivered in a clinical environment that is appropriate for the clinical procedure with adequate lighting and an appropriate examination couch which meets infection control standards.

## **3 Cooperation with third parties**

- 3.1 The Supplier shall, as reasonably required by the Authority, cooperate with any other service providers to the Authority and/or any other third parties as may be relevant in the provision of the Services e.g. Safeguarding.

## **4 Staff and Lifescience Industry Accredited Credentialing Register**

- 4.1 Subject to the requirements of this Contract and any Law, the Supplier shall be entirely responsible for the employment and conditions of service of Staff. The Supplier shall ensure that such conditions of employment are consistent with its obligations under this Contract.



- 4.2 The Supplier shall ensure that Staff delivering this service are aware of, and at all times comply with, relevant Policies e.g. the Primary Care Infection Control Standards.

## **5 Business continuity**

- 5.1 During and following a Business Continuity Event, the Supplier shall use reasonable endeavours to continue to provide the Services in accordance with this Contract. To ensure business continuity Practices may work collaboratively with one or more local general practices to establish a robust service provision (e.g. through a Primary Care Network Service Level Agreement or similar arrangement).

## **6 The Authority's obligations**

- 6.1 Subject to the Supplier providing the Services in accordance with this Contract, the Authority will pay the Supplier for the Services in accordance with Clause 8 of this Schedule 2.
- 6.2 The Authority shall comply with the Authority's Obligations, as may be referred to in the Key Provisions.

## **7 Contract management**

- 7.1 Each Party shall appoint and retain a Contract Manager who shall be the primary point of contact for the other Party in relation to matters arising from this Contract. This may be the Practice Manager for general practices or other nominated representatives. Should the Contract Manager be replaced, the Party replacing the Contract Manager shall promptly inform the other Party in writing of the name and contact details for the new Contract Manager.
- 7.2 The Authority agrees to review this contract on an annual basis with the LMC as the Supplier's representative.
- 7.3 The Authority shall provide a designated contact email address for the Provider to direct all enquiries relating to this service specification. This email address may be shared with GP practices and other relevant stakeholders solely for the purpose of communication regarding the delivery and management of the commissioned service.

## **8 Price and payment**

- 8.1 The Contract Price is set out in the Commercial Schedule.
- 8.2 Unless otherwise stated in the Commercial Schedule the Contract Price:
- 8.2.1 shall be payable from the Actual Services Commencement Date;
- 8.2.2 shall remain fixed during the Term, subject to an annual review.
- 8.3 The Supplier shall submit invoices to the Authority in accordance with the payment schedule set out in this agreement. Each invoice must include a detailed breakdown of the activities as identified in Schedule 9 the Primary Care LARC Activity Report, undertaken during the relevant invoicing period.
- 8.4 The Authority will pay the Supplier in arrears on a quarterly basis dependant on activity data being submitted and validated, in accordance with the reporting requirements laid out in the Specifications.

- 8.5 The Authority shall verify and pay each valid and undisputed invoice within thirty (30) days of receipt of such invoice.
- 8.6 Where the Authority raises a query with respect to an invoice the Parties shall liaise with each other and agree a resolution to such query within thirty (30) days of the query being raised. If the Parties are unable to agree a resolution within thirty (30) days the query shall be referred to dispute resolution in accordance with the Dispute Resolution Procedure.

## **9 Warranties**

- 9.1 The Supplier warrants and undertakes that:
- 9.1.1 Clinicians providing IUD services must hold the FSRH Letter of Competence in Intrauterine Techniques (LoCIUT)
  - 9.1.2 All Clinicians undertaking SDI procedures must hold the FSRH Letter of Competence in SDI Insertion and Removal.
  - 9.1.3 All Clinicians must adhere to Primary Care Infection Standards.

## **10 Indemnity**

- 10.1 The Supplier shall be liable to the Authority for, and shall indemnify and keep the Authority indemnified against, any loss, damages, costs, expenses (including without limitation legal costs and expenses), claims or proceedings in respect of:
- 10.1.1 any injury or allegation of injury to any person, including injury resulting in death;
- that arise or result from the Supplier's negligent acts or omissions or breach of contract in connection with the performance of this Contract including the provision of the Services, except to the extent that such loss, damages, costs, expenses (including without limitation legal costs and expenses), claims or proceedings have been caused by any act or omission by, or on behalf of, or in accordance with the instructions of, the Authority.

## **11 Limitation of liability**

- 11.1 Nothing in this Contract shall exclude or restrict the liability of either Party:
- 11.1.1 for death or personal injury resulting from its negligence;
  - 11.1.2 for fraud or fraudulent misrepresentation; or
  - 11.1.3 in any other circumstances where liability may not be limited or excluded under any applicable law.
- 11.2 Each Party shall at all times take all reasonable steps to minimise and mitigate any loss for which that Party is entitled to bring a claim against the other pursuant to this Contract.
- 11.3 Clause 11 of this Schedule 2 shall survive the expiry of or earlier termination of this Contract for any reason.

## **12     Insurance**

- 12.1 Subject to Clauses 12.2 and **Error! Reference source not found.** of this Schedule 2 and unless otherwise confirmed in writing by the Authority, as a minimum level of protection, the Supplier shall put in place and/or maintain in force at its own cost with a reputable commercial insurer, insurance arrangements in respect of employer's liability, public liability and professional indemnity in accordance with Good Industry Practice with the minimum cover per claim of the greater of five million pounds (£5,000,000) or any sum as required by Law unless otherwise agreed with the Authority in writing. These requirements shall not apply to the extent that the Supplier is a member and maintains membership of each of the indemnity schemes run by the NHS Resolution (formerly known as the NHS Litigation Authority)
- 12.2 Without limitation to any insurance arrangements as required by Law, the Supplier shall put in place and/or maintain the different types and/or levels of indemnity arrangements explicitly required by the Authority, as specified in the Key Provisions.
- 12.3 The amount of any indemnity cover shall not relieve the Supplier of any liabilities under this Contract. It shall be the responsibility of the Supplier to determine the amount of indemnity cover that will be adequate to enable it to satisfy its potential liabilities under this Contract. Accordingly, the Supplier shall be liable to make good any deficiency if the proceeds of any indemnity cover is insufficient to cover the settlement of any claim.
- 12.4 The Supplier warrants that it shall not take any action or fail to take any reasonable action or (in so far as it is reasonable and within its power) permit or allow others to take or fail to take any action, as a result of which its insurance cover may be rendered void, voidable, unenforceable, or be suspended or impaired in whole or in part, or which may otherwise render any sum paid out under such insurances repayable in whole or in part.

## **13     Term and termination**

- 13.1 This Contract shall commence on the Commencement Date and, unless terminated earlier in accordance with the terms of this Contract or the general law, shall continue until the end of the Term.
- 13.2 The Authority shall be entitled to extend the Term on one or more occasions by giving the Supplier written notice no less than six (6) months prior to the date on which this Contract would otherwise have expired, provided that the duration of this Contract shall be no longer than the total term specified in the Key Provisions.
- 13.3 In the case of a breach of any of the terms of this Contract by either Party that is capable of remedy (and subject to Clause 8.6 of this Schedule 2, any breach of any payment obligations under this Contract), the non-breaching Party may, without prejudice to its other rights and remedies under this Contract, issue a Breach Notice and shall allow the Party in breach the opportunity to remedy such breach in the first instance via a remedial proposal put forward by the Party in breach ("**Remedial Proposal**") before exercising any right to terminate this Contract. Such Remedial Proposal must be agreed with the non-breaching Party (such agreement not to be unreasonably withheld or delayed) and must be implemented by the Party in breach in accordance with the timescales referred to in the agreed Remedial Proposal. Once agreed, any changes to a Remedial Proposal must be approved by the Parties in writing. Any failure by the Party in breach to:
- 13.3.1 put forward and agree a Remedial Proposal with the non-breaching Party in relation to the relevant default or breach within a period of ten (10) Business Days (or such other period as the non-breaching Party may agree

in writing) from written notification of the relevant default or breach from the non-breaching Party;

13.3.2 comply with such Remedial Proposal (including, without limitation, as to its timescales for implementation, which shall be thirty (30) days unless otherwise agreed between the Parties); and/or

13.3.3 remedy the default or breach notwithstanding the implementation of such Remedial Proposal in accordance with the agreed timescales for implementation,

shall be deemed, a material breach of this Contract by the Party in breach not remedied in accordance with an agreed Remedial Proposal.

13.4 Either Party may terminate this Contract by issuing a Termination Notice to the other Party if such other Party commits a material breach of any of the terms of this Contract which is:

13.4.1 not capable of remedy; or

13.4.2 in the case of a breach capable of remedy, which is not remedied in accordance with a Remedial Proposal.

13.5 The Authority may terminate this Contract forthwith by issuing a Termination Notice to the Supplier:

13.5.1 if the Supplier purports to assign, Sub-contract, novate, create a trust in or otherwise transfer or dispose of this Contract;

13.5.2 pursuant to and in accordance with the Key Provisions;

13.6 a failure to resolve such breach in accordance with such Dispute Resolution Procedure by the end of the escalation stage of such process shall entitle, but shall not compel, the Authority to terminate this Contract.

13.7 The Authority may terminate this Contract by issuing a Termination Notice to the Supplier where:

13.8 there has been a failure by the Supplier to comply with legal obligations in the fields of environmental, social or labour Law.

#### **14 Consequences of expiry or early termination of this Contract**

14.1 Upon expiry or earlier termination of this Contract, the Authority agrees to pay the Supplier for the Services which have been completed by the Supplier in accordance with this Contract prior to expiry or earlier termination of this Contract.

14.2 The expiry or earlier termination of this Contract for whatever reason shall not affect any rights or obligations of either Party which accrued prior to such expiry or earlier termination.

14.3 The expiry or earlier termination of this Contract shall not affect any obligations which expressly or by implication are intended to come into or continue in force on or after such expiry or earlier termination.

#### **15 Staff information and the application of TUPE at the end of the Contract**

15.1 TUPE shall not apply at the end of this contract

15.2 The Supplier shall not allow the Services to occupy more than 40% of any individual's work. If the Services being performed by an individual approach 40% of that individual's work, the Supplier shall inform the Authority within four (4) weeks.

## **16 Complaints**

- 16.1 To the extent relevant to the Services, the Supplier shall have in place and operate a complaints procedure which complies with the requirements of the Local Authority Social Services and National Health Service Complaints (England) Regulations 2009.
- 16.2 Each Party shall inform the other of all complaints from or on behalf of patients or other service users arising out of or in connection with the provision of the Services within twenty-four (24) hours of receipt of each complaint and shall keep the other Party updated on the manner of resolution of any such complaints.

## **17 Modern slavery and environmental, social, and labour laws**

### **Environmental, social and labour law requirements**

- 17.1 The Supplier shall comply in all material respects with applicable environmental and social and labour Law requirements in force from time to time in relation to the Services. Where the provisions of any such Law are implemented by the use of voluntary agreements, the Supplier shall comply with such agreements as if they were incorporated into English law subject to those voluntary agreements being cited in the Specification.

### **Modern slavery**

- 17.2 The Supplier shall, and shall procure that each of its Sub-contractors shall, comply with the Modern Slavery Act 2015 ("**Slavery Act**"); and
- 17.3 The Supplier undertakes on an ongoing basis that:
  - 17.3.1 it conducts its business in a manner consistent with all applicable Laws including the Slavery Act and all analogous legislation in place in any part of the world in which its supply chain operates;
  - 17.3.2 neither the Supplier nor any of its Sub-contractors, nor any other persons associated with it (including any Staff):
    - (i) has been convicted of any offence involving slavery or trafficking; or
    - (ii) has been, or is currently, the subject of any investigation, inquiry or enforcement proceedings by any governmental, administrative or regulatory body relating to any offence committed regarding slavery or trafficking,not already notified to the Authority in writing in accordance with Clause 17.4 of this Schedule 2
- 17.4 The Supplier shall notify the Authority as soon as it becomes aware of:
  - 17.4.1 any breach, or potential breach, of the Anti-Slavery Policy; or
  - 17.4.2 any actual or suspected slavery or trafficking in its supply chain.
- 17.5 If the Supplier notifies the Authority pursuant to Clause 17.4 of this Schedule 2, it shall respond promptly to the Authority's enquiries, co-operate with any investigation, and allow the Authority to audit any books, premises, facilities, records and/or any other relevant documentation in accordance with this Contract.
- 17.6 If the Supplier is in breach of Clause **Error! Reference source not found.** of this Schedule 2 or the undertaking at Clause 17.3 of this Schedule 2 in addition to its other rights and remedies provided under this Contract, the Authority may:

17.6.1 by written notice require the Supplier to remove from performance of any contract or framework agreement with the Authority (including this Contract) any Sub-contractor, Staff or other persons associated with it whose acts or omissions have caused the breach; or

17.6.2 terminate this Contract by issuing a Termination Notice to the Supplier.

## **18 Electronic services information**

18.1 Not used in this contract.

## **19 Change management**

19.1 Any change to the Services or other variation to this Contract shall only be binding once it has been agreed either: (a) in accordance with the Change Control Process if the Key Provisions specify that changes are subject to a formal change control process.

## **20 Dispute resolution**

20.1 During any Dispute, including a Dispute as to the validity of this Contract, it is agreed that the Supplier shall continue its performance of the provisions of the Contract (unless the Authority requests in writing that the Supplier does not do so).

20.2 In the case of a Dispute arising out of or in connection with this Contract the Supplier and the Authority shall make every reasonable effort to communicate and cooperate with each other with a view to resolving the Dispute and follow the procedure set out in Clause 20.3 of this Schedule 2 as the first stage in the Dispute Resolution Procedure.

20.3 If any Dispute arises out of the Contract either Party may serve a notice on the other Party to commence formal resolution of the Dispute. The Parties shall first seek to resolve the Dispute by escalation in accordance with the management levels as set out in Clause 5 of the Key Provisions. Respective representatives at each level, as set out in Clause 5 of the Key Provisions, shall have five (5) Business Days at each level during which they will use their reasonable endeavours to resolve the Dispute before escalating the matter to the next levels until all level have been exhausted. Level 1 will commence on the date of service of the Dispute Notice. The final level of the escalation process shall be deemed exhausted on the expiry of five (5) Business Days following escalation to that level unless otherwise agreed by the Parties in writing.

20.4 If the procedure set out in Clause 20.3 of this Schedule 2 above has been exhausted and fails to resolve such Dispute, as part of the Dispute Resolution Procedure, the Parties will attempt to settle it by mediation. The Parties, shall acting reasonably, attempt to agree upon a mediator. In the event that the Parties fail to agree a mediator within five (5) Business Days following the exhaustion of all levels of the escalation procedure at Clause 20.3 of this Schedule 2, the mediator shall be nominated and confirmed by the Centre for Effective Dispute Resolution, London.

20.5 The mediation shall commence within twenty eight (28) days of the confirmation of the mediator in accordance with Clause 20.4 of this Schedule 2 or at such other time as may be agreed by the Parties in writing. Neither Party will terminate such mediation process until each Party has made its opening presentation and the mediator has met each Party separately for at least one hour or one Party has failed to participate in the mediation process. After this time, either Party may terminate the mediation process by notification to the other Party (such notification may be verbal

provided that it is followed up by written confirmation). The Authority and the Supplier will cooperate with any person appointed as mediator providing them with such information and other assistance as they shall require and will pay their costs, as they shall determine or in the absence of such determination such costs will be shared equally.

20.6 Nothing in this Contract shall prevent:

20.6.1 the Authority taking action in any court in relation to any death or personal injury arising or allegedly arising in connection with the provision of the Services; or

20.6.2 either Party seeking from any court any interim or provisional relief that may be necessary to protect the rights or property of that Party or that relates to the safety of patients and other service users or the security of Confidential Information, pending resolution of the relevant Dispute in accordance with the Dispute Resolution Procedure.

20.7 Clause 20 of this Schedule 2 shall survive the expiry of or earlier termination of this Contract for any reason.

## **21 Force majeure**

21.1 Not specified in this contract.

## **22 Records retention and right of audit**

22.1 Subject to any statutory requirement and Clause 22.2 of this Schedule 2, the Supplier shall keep secure and maintain for the Term and six (6) years afterwards, or such longer period as may be agreed between the Parties, full and accurate records of all matters relating to this Contract.

22.2 Where any records could be relevant to a claim for personal injury such records shall be kept secure and maintained for a period of twenty one (21) years from the date of expiry or earlier termination of this Contract.

22.3 The Supplier shall provide reasonable cooperation to the Authority, its representatives and any regulatory body in relation to any audit, review, investigation or enquiry carried out in relation to the subject matter of this Contract.

22.4 The Supplier shall provide all reasonable information as may be reasonably requested by the Authority to evidence the Supplier's compliance with the requirements of this Contract.

## **23 Conflicts of interest and the prevention of fraud**

23.1 The Supplier shall take appropriate steps to ensure that neither the Supplier nor any Staff are placed in a position where, in the reasonable opinion of the Authority, there is or may be an actual conflict, or a potential conflict, between the pecuniary or personal interests of the Supplier and the duties owed to the Authority under the provisions of this Contract. The Supplier will disclose to the Authority full particulars of any such conflict of interest which may arise.

23.2 The Authority reserves the right to terminate this Contract immediately by notice in writing and/or to take such other steps it deems necessary where, in the reasonable opinion of the Authority, there is or may be an actual conflict, or a potential conflict, between the pecuniary or personal interests of the Supplier and the duties owed to the Authority under the provisions of this Contract.

- 23.3 The Supplier shall take all reasonable steps to prevent Fraud by Staff and the Supplier (including its owners, members and directors). The Supplier shall notify the Authority immediately if it has reason to suspect that any Fraud has occurred or is occurring or is likely to occur.
- 23.4 If the Supplier or its Staff commits Fraud the Authority may terminate this Contract and recover from the Supplier the amount of any direct loss suffered by the Authority resulting from the termination.

## **24 Equality and human rights**

- 24.1 The Supplier shall ensure that (a) it does not, whether as employer or as provider of the Services, engage in any act or omission that would contravene the Equality Legislation, and (b) it complies with all its obligations as an employer or provider of the Services as set out in the Equality Legislation and take reasonable endeavours to ensure its Staff do not unlawfully discriminate within the meaning of the Equality Legislation;

## **25 Notice**

- 25.1 Any notice required to be given by either Party under this Contract shall be in writing quoting the date of the Contract and shall be sent by prepaid first class recorded delivery or by email to the person referred to in the Key Provisions or such other person as one Party may inform the other Party in writing from time to time.
- 25.2 A notice shall be treated as having been received:
- 25.2.1 if delivered by hand within normal business hours when so delivered or, if delivered by hand outside normal business hours, at the next start of normal business hours; or
  - 25.2.2 if sent by first class recorded delivery mail on a normal Business Day, at 9.00 am on the second Business Day subsequent to the day of posting, or, if the notice was not posted on a Business Day, at 9.00 am on the third Business Day subsequent to the day of posting; or
  - 25.2.3 if sent by email, if sent within normal business hours when so sent or, if sent outside normal business hours, at the next start of normal business hours provided the sender has either received an electronic confirmation of delivery or has telephoned the recipient to inform the recipient that the email has been sent.

## **26 Prohibited Acts**

- 26.1 The Supplier warrants and represents that:
- 26.1.1 it has not committed any offence under the Bribery Act 2010 or done any of the following ("**Prohibited Acts**"):
    - (i) offered, given or agreed to give any officer or employee of the Authority any gift or consideration of any kind as an inducement or reward for doing or not doing or for having done or not having done any act in relation to the obtaining or performance of this or any other agreement with the Authority or for showing or not showing favour or disfavour to any person in relation to this or any other agreement with the Authority; or
    - (ii) in connection with this Contract paid or agreed to pay any commission other than a payment, particulars of which (including



the terms and conditions of the agreement for its payment) have been disclosed in writing to the Authority; and

- 26.1.2 it has in place adequate procedures to prevent bribery and corruption, as contemplated by section 7 of the Bribery Act 2010.
- 26.2 If the Supplier or its Staff (or anyone acting on its or their behalf) has done or does any of the Prohibited Acts or has committed or commits any offence under the Bribery Act 2010 with or without the knowledge of the Supplier in relation to this or any other agreement with the Authority, the Authority shall be entitled to terminate this Contract.
- 27 General**
- 27.1 Each of the Parties is independent of the other and nothing contained in this Contract shall be construed to imply that there is any relationship between the Parties of partnership or of principal/agent or of employer/employee nor are the Parties hereby engaging in a joint venture and accordingly neither of the Parties shall have any right or authority to act on behalf of the other nor to bind the other by agreement or otherwise, unless expressly permitted by the terms of this Contract.
- 27.2 Failure or delay by either Party to exercise an option or right conferred by this Contract shall not of itself constitute a waiver of such option or right.
- 27.3 The delay or failure by either Party to insist upon the strict performance of any provision, term or condition of this Contract or to exercise any right or remedy consequent upon such breach shall not constitute a waiver of any such breach or any subsequent breach of such provision, term or condition.
- 27.4 Any provision of this Contract which is held to be invalid or unenforceable in any jurisdiction shall be ineffective to the extent of such invalidity or unenforceability without invalidating or rendering unenforceable the remaining provisions of this Contract and any such invalidity or unenforceability in any jurisdiction shall not invalidate or render unenforceable such provisions in any other jurisdiction.
- 27.5 Each Party acknowledges and agrees that it has not relied on any representation, warranty or undertaking (whether written or oral) in relation to the subject matter of this Contract and therefore irrevocably and unconditionally waives any rights it may have to claim damages against the other Party for any misrepresentation or undertaking (whether made carelessly or not) or for breach of any warranty unless the representation, undertaking or warranty relied upon is set out in this Contract or unless such representation, undertaking or warranty was made fraudulently.
- 27.6 Each Party shall bear its own expenses in relation to the preparation and execution of this Contract including all costs, legal fees and other expenses so incurred.
- 27.7 The rights and remedies provided in this Contract are independent, cumulative and not exclusive of any rights or remedies provided by general law, any rights or remedies provided elsewhere under this Contract or by any other contract or document. Right includes any power, privilege, remedy, or proprietary or security interest.
- 27.8 Unless otherwise expressly stated in this Contract, a person who is not a party to this Contract shall have no right to enforce any terms of it which confer a benefit on such person except that a Successor and/or a Third Party may directly enforce any indemnities or other rights provided to it under this Contract. No such person shall be entitled to object to or be required to consent to any amendment to the provisions of this Contract.

- 27.9 This Contract, any variation in writing signed by an authorised representative of each Party and any document referred to (explicitly or by implication) in this Contract or any variation to this Contract, contain the entire understanding between the Supplier and the Authority relating to the Services to the exclusion of all previous agreements, confirmations and understandings and there are no promises, terms, conditions or obligations whether oral or written, express or implied other than those contained or referred to in this Contract. Nothing in this Contract seeks to exclude either Party's liability for Fraud. Any tender conditions and/or disclaimers set out in the Authority's procurement documentation leading to the award of this Contract shall form part of this Contract.
- 27.10 This Contract, and any Dispute or claim arising out of or in connection with it or its subject matter (including any non-contractual claims), shall be governed by, and construed in accordance with, the laws of England and Wales.
- 27.11 Subject to Clause 20 of this Schedule 2, the Parties irrevocably agree that the courts of England and Wales shall have non-exclusive jurisdiction to settle any Dispute or claim that arises out of or in connection with this Contract or its subject matter.
- 27.12 All written and oral communications and all written material referred to under this Contract shall be in English.

### Schedule 3

#### Information and Data Provisions

##### **1**     Confidentiality

- 1.1     In respect of any Confidential Information it may receive directly or indirectly from the other Party ("**Discloser**") and subject always to the remainder of Clause 0 of this Schedule 3, each Party ("**Recipient**") undertakes to keep secret and strictly confidential and shall not disclose any such Confidential Information to any third party without the Discloser's prior written consent provided that:
- 1.1.1     the Recipient shall not be prevented from using any general knowledge, experience or skills which were in its possession prior to the Commencement Date;
- 1.1.2     the provisions of Clause 0 of this Schedule 3 shall not apply to any Confidential Information:
- (i)     which is in or enters the public domain other than by breach of this Contract or other act or omissions of the Recipient;
  - (ii)    which is obtained from a third party who is lawfully authorised to disclose such information without any obligation of confidentiality;
  - (iii)   which is authorised for disclosure by the prior written consent of the Discloser;
  - (iv)    which the Recipient can demonstrate was in its possession without any obligation of confidentiality prior to receipt of the Confidential Information from the Discloser; or
  - (v)     which the Recipient is required to disclose purely to the extent to comply with the requirements of any relevant stock exchange.
- 1.2     Nothing in Clause 0 of this Schedule 3 shall prevent the Recipient from disclosing Confidential Information where it is required to do so by judicial, administrative, governmental or regulatory process in connection with any action, suit, proceedings or claim or otherwise by applicable Law, including the Freedom of Information Act 2000 ("**FOIA**"), Codes of Practice on Access to Government Information, on the Discharge of Public Authorities' Functions or on the Management of Records ("**Codes of Practice**") or the Environmental Information Regulations 2004 ("**Environmental Regulations**").
- 1.3     The Authority may disclose the Supplier's Confidential Information:
- 1.3.1     on a confidential basis, to any Contracting Authority (the Parties agree that all Contracting Authorities receiving such Confidential Information shall be entitled to further disclose the Confidential Information to other Contracting Authorities on the basis that the information is confidential and is not to be disclosed to a third party which is not part of any Contracting Authority);
- 1.3.2     on a confidential basis, to any consultant, contractor or other person engaged by the Authority and/or the Contracting Authority receiving such information;
- 1.3.3     to any relevant party for the purpose of the examination and certification of the Authority's accounts;
- 1.3.4     to any relevant party for any examination pursuant to section 6(1) of the National Audit Act 1983 of the economy, efficiency and effectiveness with which the Authority has used its resources;

- 1.3.5 to Parliament and Parliamentary Committees or if required by any Parliamentary reporting requirements; or
  - 1.3.6 on a confidential basis to a proposed successor body in connection with any proposed or actual, assignment, novation or other disposal of rights, obligations, liabilities or property in connection with this Contract;
- and for the purposes of this Contract, references to disclosure "on a confidential basis" shall mean the Authority making clear the confidential nature of such information and that it must not be further disclosed except in accordance with Law or this Clause 1.3 of this Schedule 3.
- 1.4 The Supplier may only disclose the Authority's Confidential Information, and any other information provided to the Supplier by the Authority in relation this Contract, to the Supplier's Staff or professional advisors who are directly involved in the performance of or advising on the Supplier's obligations under this Contract. The Supplier shall ensure that such Staff or professional advisors are aware of and shall comply with the obligations in Clause 0 of this Schedule 3 as to confidentiality and that all information, including Confidential Information, is held securely, protected against unauthorised use or loss and, at the Authority's written discretion, destroyed securely or returned to the Authority when it is no longer required. The Supplier shall not, and shall ensure that the Staff do not, use any of the Authority's Confidential Information received otherwise than for the purposes of performing the Supplier's obligations in this Contract.
  - 1.5 For the avoidance of doubt, save as required by Law or as otherwise set out in this Schedule 3, the Supplier shall not, without the prior written consent of the Authority (such consent not to be unreasonably withheld or delayed), announce that it has entered into this Contract and/or that it has been appointed as a Supplier to the Authority and/or make any other announcements about this Contract.
  - 1.6 Clause 0 of this Schedule 3 shall remain in force:
    - 1.6.1 without limit in time in respect of Confidential Information which comprises Personal Data or which relates to national security; and
    - 1.6.2 for all other Confidential Information for a period of three (3) years after the expiry or earlier termination of this Contract unless otherwise agreed in writing by the Parties.
- 2 Data protection**
- 2.1 The Parties acknowledge their respective duties under Data Protection Legislation and shall give each other all reasonable assistance as appropriate or necessary to enable each other to comply with those duties. For the avoidance of doubt, the Supplier shall take reasonable steps to ensure it is familiar with the Data Protection Legislation and any obligations it may have under such Data Protection Legislation and shall comply with such obligations.
  - 2.2 BLANK
  - 2.3 The Supplier and the Authority shall ensure that patient related Personal Data is safeguarded at all times in accordance with the Law, and this obligation will include (if transferred electronically) only transferring patient related Personal Data (a) if essential, having regard to the purpose for which the transfer is conducted; and (b) that is encrypted in accordance with any international data encryption standards for healthcare, and as otherwise required by those standards applicable to the Authority under any Law and Guidance (this includes, data transferred over wireless or wired networks, held on laptops, CDs, memory sticks and tapes).

- 2.4 Where, as a requirement of this Contract, the Supplier is Processing Personal Data relating to NHS patients and/or service users and/or has access to NHS systems as part of the Services, the Supplier shall:
- 2.4.1 complete and publish an annual information governance assessment using the Data Security and Protection toolkit;
  - 2.4.2 achieve all relevant requirements in the relevant Data Security and Protection toolkit;
  - 2.4.3 nominate an information governance lead to report, but not limited to, details of all incidents of data loss and breach of confidence;
  - 2.4.4 report all incidents of data loss and breach of confidence in accordance with Department of Health and Social Care and/or the NHS England and/or Health and Social Care Information Centre guidelines;
  - 2.4.5 put in place and maintain policies that describe individual personal responsibilities for handling Personal Data and apply those policies vigorously;
  - 2.4.6 put in place and maintain a policy that supports its obligations under the NHS Care Records Guarantee (being the rules which govern information held in the NHS Care Records Service, which is the electronic patient/service user record management service providing authorised healthcare professionals access to a patient's integrated electronic care record);
  - 2.4.7 put in place and maintain agreed protocols for the lawful sharing of Personal Data with other NHS organisations and (as appropriate) with non-NHS organisations in circumstances in which sharing of that data is required under this Contract;
  - 2.4.8 where appropriate, have a system in place and a policy for the recording of any telephone calls in relation to the Services, including the retention and disposal of those recordings;
  - 2.4.9 at all times comply with any information governance requirements and/or processes as may be set out in the Specification.
  - 2.4.10 comply with any new and/or updated requirements, Guidance and/or Policies notified to the Supplier by the Authority from time to time (acting reasonably) relating to the Processing and/or protection of Personal Data.
- 2.5 The Supplier shall indemnify and keep the Authority indemnified against, any loss, damages, costs, expenses (including without limitation legal costs and expenses), claims or proceedings whatsoever or howsoever arising from the Supplier's unlawful or unauthorised Processing, destruction and/or damage to Personal Data in connection with this Contract.

### **3 Freedom of Information and Transparency**

- 3.1 The Parties acknowledge the duties of Contracting Authorities under the FOIA, Codes of Practice and Environmental Regulations and shall give each other all reasonable assistance as appropriate or necessary to enable compliance with those duties.
- 3.2 The Supplier shall assist and cooperate with the Authority to enable it to comply with its disclosure obligations under the FOIA, Codes of Practice and Environmental Regulations. The Supplier agrees:

- 3.2.1 that this Contract and any recorded information held by the Supplier on the Authority's behalf for the purposes of this Contract are subject to the obligations and commitments of the Authority under the FOIA, Codes of Practice and Environmental Regulations;
- 3.2.2 that the decision on whether any exemption to the general obligations of public access to information applies to any request for information received under the FOIA, Codes of Practice and Environmental Regulations is a decision solely for the Authority;
- 3.2.3 that where the Supplier receives a request for information under the FOIA, Codes of Practice and Environmental Regulations and the Supplier itself is subject to the FOIA, Codes of Practice and Environmental Regulations it will liaise with the Authority as to the contents of any response before a response to a request is issued and will promptly (and in any event within two (2) Business Days) provide a copy of the request and any response to the Authority;
- 3.2.4 that where the Supplier receives a request for information under the FOIA, Codes of Practice and Environmental Regulations and the Supplier is not itself subject to the FOIA, Codes of Practice and Environmental Regulations, it will not respond to that request (unless directed to do so by the Authority) and will promptly (and in any event within two (2) Business Days) transfer the request to the Authority;
- 3.2.5 that the Authority, acting in accordance with the Codes of Practice issued and revised from time to time under both section 45 of FOIA, and regulation 16 of the Environmental Regulations, may disclose information concerning the Supplier and this Contract; and
- 3.2.6 to assist the Authority in responding to a request for information, by processing information or environmental information (as the same are defined in FOIA and the Environmental Regulations) in accordance with a records management system that complies with all applicable records management recommendations and codes of conduct issued under section 46 of FOIA, and providing copies of all information requested by the Authority within five (5) Business Days of that request and without charge.
- 3.3 The Parties acknowledge that, except for any information which is exempt from disclosure in accordance with the provisions of the FOIA, Codes of Practice and Environmental Regulations, the content of this Contract is not Confidential Information.
- 3.4 Notwithstanding any other term of this Contract, the Supplier consents to the publication of this Contract in its entirety (including variations), subject only to the redaction of information that is exempt from disclosure in accordance with the provisions of the FOIA, Codes of Practice and Environmental Regulations.
- 3.5 In preparing a copy of this Contract for publication under Clause 3.4 of this Schedule 3, the Authority may consult with the Supplier to inform decision making regarding any redactions but the final decision in relation to the redaction of information will be at the Authority's absolute discretion.
- 3.6 The Supplier shall assist and cooperate with the Authority to enable the Authority to publish this Contract.

4        **Information Security**

4.1       Without limitation to any other information governance requirements set out in this Schedule 3, the Supplier shall:

4.1.1       notify the Authority forthwith of any information security breaches or near misses (including without limitation any potential or actual breaches of confidentiality or actual information security breaches) in line with the Authority's information governance Policies; and

4.1.2       fully cooperate with any audits or investigations relating to information security and any privacy impact assessments undertaken by the Authority and shall provide full information as may be reasonably requested by the Authority in relation to such audits, investigations and assessments.

4.2       Where required in accordance with the Specification, the Supplier will ensure that it puts in place and maintains an information security management plan appropriate to this Contract, the type of Services being provided and the obligations placed on the Supplier. The Supplier shall ensure that such plan is consistent with any relevant Policies, Guidance, Good Industry Practice and with any relevant quality standards as may be set out in the Key Provisions and/or the Specification.

## **Schedule 4**

### **Definitions and Interpretations**

#### **1 Definitions**

- 1.1 In this Contract the following words shall have the following meanings unless the context requires otherwise:

|                                            |                                                                                                                                                                                                                                                                                                                                         |
|--------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>“Actual Services Commencement Date”</b> | means the date the Supplier actually commences delivery of the Services;                                                                                                                                                                                                                                                                |
| <b>“Actuary”</b>                           | means a Fellow of the Institute and Faculty of Actuaries;                                                                                                                                                                                                                                                                               |
| <b>“Anti-Slavery Policy”</b>               | has the meaning given under Clause <b>Error! Reference source not found.</b> of Schedule 2;                                                                                                                                                                                                                                             |
| <b>“Authority”</b>                         | means the authority named on the form of Contract on the first page;                                                                                                                                                                                                                                                                    |
| <b>“Authority’s Actuary”</b>               | means the Government Actuaries Department;                                                                                                                                                                                                                                                                                              |
| <b>“Authority’s Obligations”</b>           | means the Authority’s further obligations, if any, referred to in the Key Provisions;                                                                                                                                                                                                                                                   |
| <b>“Breach Notice”</b>                     | means a written notice of breach given by one Party to the other, notifying the Party receiving the notice of its breach of this Contract;                                                                                                                                                                                              |
| <b>“Broadly Comparable”</b>                | means certified by an Actuary as satisfying the condition that there are no identifiable Eligible Employees who would overall suffer material detriment in terms of their future accrual of Pension Benefits under the scheme compared with the NHS Pension Scheme assessed in accordance with Annex A of Fair Deal for Staff Pensions; |
| <b>“Business Continuity Event”</b>         | means any event or issue that could impact on the operations of the Supplier and its ability to provide the Services including a pandemic and any Force Majeure Event;                                                                                                                                                                  |
| <b>“Business Continuity Plan”</b>          | means the Supplier’s business continuity plan which includes its plans for continuity of the Services during a Business Continuity Event;                                                                                                                                                                                               |
| <b>“Business Day”</b>                      | means any day other than Saturday, Sunday, Christmas Day, Good Friday or a statutory bank holiday in England and Wales;                                                                                                                                                                                                                 |
| <b>“Cabinet Office Statement”</b>          | the Cabinet Office Statement of Practice – Staff Transfers in the Public Sector 2000 (as revised 2013) as may be amended or replaced;                                                                                                                                                                                                   |
| <b>“Change Control Process”</b>            | means the change control process, if any, referred to in the Key Provisions;                                                                                                                                                                                                                                                            |



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| <b>“Change in Law”</b>            | means any change in Law which impacts on the provision of the Services which comes into force after the Commencement Date;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>“Clinician”</b>                | any health professional who has direct, hands-on contact with patients to diagnose, treat, and manage their care,                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| <b>“Codes of Practice”</b>        | shall have the meaning given to the term in Clause 1.2 of Schedule 3;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>“Commencement Date”</b>        | means the date of this Contract;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>“Commercial Schedule”</b>      | means the document set out at <b>Error! Reference source not found.</b> ;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>“Comparable Supply”</b>        | means the supply of services to another customer of the Supplier that are the same or similar to any of the Services;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>“Confidential Information”</b> | <p>means information, data and material of any nature, which either Party may receive or obtain in connection with the conclusion and/or operation of the Contract including any procurement process which is:</p> <ul style="list-style-type: none"> <li>(a) Personal Data including without limitation which relates to any patient or other service user or his or her treatment or clinical or care history;</li> <li>(b) designated as confidential by either party or that ought reasonably to be considered as confidential (however it is conveyed or on whatever media it is stored); and/or</li> <li>(c) Policies and such other documents which the Supplier may obtain or have access to through the Authority’s intranet;</li> </ul> |
| <b>“Contract”</b>                 | means the form of contract at the front of this document and all schedules attached to the form of contract;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| <b>“Contracting Authority”</b>    | means any contracting authority as defined in Regulation 2 (1) of the Public Contracts Regulations 2015 (SI 2015/102) (as amended), other than the Authority;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“Contract Manager”</b>         | means for the Authority and for the Supplier the individuals specified in the Key Provisions; or such other person notified by a Party to the other Party from time to time in accordance with Clause 7.1 of Schedule 2;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>“Contract Price”</b>           | means the price exclusive of VAT that is payable to the Supplier by the Authority under the Contract for the full and proper performance by the Supplier of its obligations under the Contract;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>“Controller”</b>               | shall have the same meaning as set out in the UK GDPR;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

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| <b>“Convictions”</b>                  | means, other than in relation to minor road traffic offences, any previous or pending prosecutions, convictions, cautions and binding-over orders (including any spent convictions as contemplated by section 1(1) of the Rehabilitation of Offenders Act 1974 or any replacement or amendment to that Act);                                                                                                                               |
| <b>“Cost Increase”</b>                | shall have the meaning given to the term in Clause <b>Error! Reference source not found.</b> of Part D of <b>Error! Reference source not found.</b> ;                                                                                                                                                                                                                                                                                      |
| <b>“Cost Saving”</b>                  | shall have the meaning given to the term in Clause <b>Error! Reference source not found.</b> of Part D of <b>Error! Reference source not found.</b> ;                                                                                                                                                                                                                                                                                      |
| <b>“Data Protection Legislation”</b>  | means the Data Protection Act 2018 and the UK GDPR and any other applicable laws of England and Wales relating to the protection of Personal Data and the privacy of individuals (all as amended, updated, replaced or re-enacted from time to time);                                                                                                                                                                                      |
| <b>“Data Protection Protocol”</b>     | means any document of that name as provided to the Supplier by the Authority (as amended from time to time in accordance with its terms), which shall include, without limitation, any such document appended to Schedule 3 (Information and Data Provisions) of this Contract;                                                                                                                                                            |
| <b>“Direction Letter”</b>             | means an NHS Pensions Direction letter issued by the Secretary of State in exercise of the powers conferred by section 7 of the Superannuation (Miscellaneous Provisions) Act 1967 and issued to the Supplier or a Sub-contractor of the Supplier (as appropriate) relating to the terms of participation of the Supplier or Sub-contractor in the NHS Pension Scheme in respect of the Eligible Employees;                                |
| <b>“Dispute(s)”</b>                   | means any dispute, difference or question of interpretation or construction arising out of or in connection with this Contract, including any dispute, difference or question of interpretation relating to the Services, any matters of contractual construction and interpretation relating to the Contract, or any matter where this Contract directs the Parties to resolve an issue by reference to the Dispute Resolution Procedure; |
| <b>“Dispute Notice”</b>               | means a written notice served by one Party to the other stating that the Party serving the notice believes there is a Dispute;                                                                                                                                                                                                                                                                                                             |
| <b>“Dispute Resolution Procedure”</b> | means the process for resolving Disputes as set out in Clause 20 of Schedule 2 or, where Clause <b>Error! Reference source not found.</b> of Schedule 1 of the Contract applies, the process for resolving Disputes as set out in 0. For the avoidance of doubt, the Dispute Resolution Procedure is subject to Clause <b>Error! Reference source not found.</b> of Schedule 2;                                                            |
| <b>“DOTAS”</b>                        | means the Disclosure of Tax Avoidance Schemes rules which require a promoter of tax schemes to tell HM Revenue and                                                                                                                                                                                                                                                                                                                         |

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|                                       | Customs of any specified notifiable arrangements or proposals and to provide prescribed information on those arrangements or proposals within set time limits as contained in Part 7 of the Finance Act 2004 and in secondary legislation made under vires contained in Part 7 of the Finance Act 2004 and as extended to National Insurance Contributions by the National Insurance Contributions (Application of Part 7 of the Finance Act 2004) Regulations 2012, SI 2012/1868 made under s.132A Social Security Administration Act 1992;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>“Electronic Trading System(s)”</b> | means such electronic data interchange system and/or world wide web application and/or other application with such message standards and protocols as the Authority may specify from time to time;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>“Eligible Employees”</b>           | <p>means each of the Transferred Staff who immediately before the Employee Transfer Date was a member of, or was entitled to become a member of, or but for their compulsory transfer of employment would have been entitled to become a member of, either the NHS Pension Scheme or a Broadly Comparable scheme as a result of their employment or former employment with an NHS Body (or other employer which participates automatically in the NHS Pension Scheme) and being continuously engaged for more than 50% of their employed time with the Authority (in the case of Transferring Employees) or a Third Party (in the case of Third Party Employees) in the delivery of services the same as or similar to the Services.</p> <p>For the avoidance of doubt a member of Staff who is or is entitled to become a member of the NHS Pension Scheme as a result of being engaged in the Services and being covered by an “open” Direction Letter or other NHS Pension Scheme “access” facility but who has never been employed directly by an NHS Body (or other body which participates automatically in the NHS Pension Scheme) is not an Eligible Employee entitled to Fair Deal for Staff Pensions protection under Part D of <b>Error! Reference source not found.</b>;</p> |
| <b>“Employee Transfer Date”</b>       | means the Transferred Staff’s first day of employment with the Supplier (or its Sub-contractor);                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>“Employment Liabilities”</b>       | means all claims, demands, actions, proceedings, damages, compensation, tribunal awards, fines, costs (including but not limited to reasonable legal costs), expenses and all other liabilities whatsoever;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>“Environmental Regulations”</b>    | shall have the meaning given to the term in Clause 1.2 of Schedule 3;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>“eProcurement Guidance”</b>        | <p>means the NHS eProcurement Strategy available via:</p> <p><a href="http://www.gov.uk/government/collections/nhs-procurement">http://www.gov.uk/government/collections/nhs-procurement</a></p> <p>together with any further Guidance issued by the Department of Health and Social Care in connection with it;</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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| <b>“Equality Legislation”</b>          | means any and all legislation, applicable guidance and statutory codes of practice relating to equality, diversity, non-discrimination and human rights as may be in force in England and Wales from time to time including, but not limited to, the Equality Act 2010, the Part-time Workers (Prevention of Less Favourable Treatment) Regulations 2000 and the Fixed-term Employees (Prevention of Less Favourable Treatment) Regulations 2002 (SI 2002/2034) and the Human Rights Act 1998;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“EU References”</b>                 | shall have the meaning given to the term in Clause 1.17 of this Schedule 4;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>“Evergreen Supplier Assessment”</b> | shall have the meaning given to the term in Clause <b>Error! Reference source not found.</b> of Schedule 1;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>“Exit Day”</b>                      | shall have the meaning in the European Union (Withdrawal) Act 2018;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>“Exit Requirements”</b>             | means the Authority’s exit requirements, as set out in the Specification and Tender Response Document and/or otherwise as part of this Contract, which the Supplier must comply with during the Term and/or in relation to any expiry or early termination of this Contract;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>“Fair Deal for Staff Pensions”</b>  | means guidance issued by HM Treasury entitled “Fair Deal for staff pensions: staff transfer from central government” issued in October 2013 (as amended, supplemented or replaced);                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |
| <b>“FOIA”</b>                          | shall have the meaning given to the term in Clause 1.2 of Schedule 3;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>“Force Majeure Event”</b>           | <p>means any event beyond the reasonable control of the Party in question to include, without limitation:</p> <ul style="list-style-type: none"> <li>(a) war including civil war (whether declared or undeclared), riot, civil commotion or armed conflict materially affecting either Party’s ability to perform its obligations under this Contract;</li> <li>(b) acts of terrorism;</li> <li>(c) flood, storm or other natural disasters;</li> <li>(d) fire;</li> <li>(e) unavailability of public utilities and/or access to transport networks to the extent no diligent supplier could reasonably have planned for such unavailability as part of its business continuity planning;</li> <li>(f) government requisition or impoundment to the extent such requisition or impoundment does not result from any failure by the Supplier to comply with any relevant regulations, laws or procedures (including such laws or regulations relating to the payment of any duties or taxes) and subject to the Supplier having used all</li> </ul> |

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|                                  | <p>reasonable legal means to resist such requisition or impoundment;</p> <p>(g) compliance with any local law or governmental order, rule, regulation or direction applicable outside of England and Wales that could not have been reasonably foreseen;</p> <p>(h) industrial action which affects the ability of the Supplier to provide the Services, but which is not confined to the workforce of the Supplier or the workforce of any Sub-contractor of the Supplier; and</p> <p>(i) a failure in the Supplier's and/or Authority's supply chain to the extent that such failure is due to any event suffered by a member of such supply chain, which would also qualify as a Force Majeure Event in accordance with this definition had it been suffered by one of the Parties,</p> <p>but excluding, for the avoidance of doubt, any event or other consequence arising as a result of or in connection with the withdrawal of the United Kingdom from the European Union;</p> |
| <b>"Fraud"</b>                   | means any offence under any law in respect of fraud in relation to this Contract or defrauding or attempting to defraud or conspiring to defraud the government, parliament or any Contracting Authority;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>"General Anti-Abuse Rule"</b> | <p>means</p> <p>(a) the legislation in Part 5 of the Finance Act 2013; and</p> <p>(b) any future legislation introduced into parliament to counteract tax advantages arising from abusive arrangements to avoid national insurance contributions;</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>"General Change in Law"</b>   | means a Change in Law where the change is of a general legislative nature (including taxation or duties of any sort affecting the Supplier) or which affects or relates to a Comparable Supply;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>"Good Industry Practice"</b>  | means the exercise of that degree of skill, diligence, prudence, risk management, quality management and foresight which would reasonably and ordinarily be expected from a skilled and experienced service provider engaged in the provision of services similar to the Services under the same or similar circumstances as those applicable to this Contract, including in accordance with any codes of practice published by relevant trade associations;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>"Guidance"</b>                | means any applicable guidance, supplier code of conduct, direction or determination and any policies, advice or industry alerts which apply to the Services, to the extent that the same are published and publicly available or the existence or contents of them have been notified to the Supplier by the Authority and/or have been published and/or notified to the Supplier by the Department of Health and Social Care, NHS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |

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|                                                | England and NHS Improvement, the Medicines and Healthcare products Regulatory Agency, the European Medicines Agency, the European Commission, the Care Quality Commission, the National Institute for Health and Care Excellence and/or any other regulator or competent body;                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>“Halifax Abuse Principle”</b>               | means the principle explained in the CJEU Case C-255/02 Halifax and others;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| <b>“HM Government Cyber Essentials Scheme”</b> | means the HM Government Cyber Essentials Scheme as further defined in the documents relating to this scheme published at:<br><a href="https://www.gov.uk/government/publications/cyber-essentials-scheme-overview">https://www.gov.uk/government/publications/cyber-essentials-scheme-overview</a> ;                                                                                                                                                                                                                                                                                                                                                                                                    |
| <b>“Implementation Plan”</b>                   | means the implementation plan, if any, referred to in the Key Provisions;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>“Implementation Requirements”</b>           | means the Authority’s implementation and mobilisation requirements (if any), as may be set out in the Specification and Tender Response Document and/or otherwise as part of this Contract, which the Supplier must comply with as part of implementing the Services;                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>“Intellectual Property Rights”</b>          | means all patents, copyright, design rights, registered designs, trademarks, know-how, database rights, confidential formulae and any other intellectual property rights and the rights to apply for patents and trademarks and registered designs;                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“Interested Party”</b>                      | means any organisation which has a legitimate interest in providing services of the same or similar nature to the Services in immediate or proximate succession to the Supplier or any Sub-contractor and who had confirmed such interest in writing to the Authority;                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>“Key Provisions”</b>                        | means the key provisions set out in Schedule 1;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>“KPI”</b>                                   | means the key performance indicators as set out in Schedule 5;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>“Law”</b>                                   | means any applicable legal requirements including, without limitation: <ul style="list-style-type: none"> <li>(a) any applicable statute or proclamation, delegated or subordinate legislation, bye-law, order, regulation or instrument as applicable in England and Wales;</li> <li>(b) any applicable European Union obligation, directive, regulation, decision, law or right (including any such obligations, directives, regulations, decisions, laws or rights that are incorporated into the law of England and Wales or given effect in England and Wales by any applicable statute, proclamation, delegated or subordinate legislation, bye-law, order, regulation or instrument);</li> </ul> |

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|                                                         | <p>(c) any enforceable community right within the meaning of section 2(1) European Communities Act 1972;</p> <p>(d) any applicable judgment of a relevant court of law which is a binding precedent in England and Wales;</p> <p>(e) requirements set by any regulatory body as applicable in England and Wales;</p> <p>(f) any relevant code of practice as applicable in England and Wales; and</p> <p>(g) any relevant collective agreement and/or international law provisions (to include, without limitation, as referred to in (a) to (f) above);</p> |
| <b>“Long Stop Date”</b>                                 | means the date, if any, specified in the Key Provisions;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“Losses”</b>                                         | all damage, loss, liabilities, claims, actions, costs, expenses (including the cost of legal and/or professional services) proceedings, demands and charges whether arising under statute, contract or at common law;                                                                                                                                                                                                                                                                                                                                        |
| <b>“Net Zero and Social Value Commitments”</b>          | means the Supplier’s net zero and social value commitments, each as set out in the Key Provisions and/or the Specification and Tender Response Document;                                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“Net Zero and Social Value Contract Commitments”</b> | shall have the meaning given in Clause <b>Error! Reference source not found.</b> of Schedule 1;                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>“Measures”</b>                                       | means any measures proposed by the Supplier or any Sub-contractor within the meaning of regulation 13(2)(d) of TUPE;                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>“NHS”</b>                                            | means the National Health Service;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>“NHS Body”</b>                                       | has the meaning given to it in section 275 of the National Health Service Act 2006 as amended by section 138(2)(c) of Schedule 4 to the Health and Social Care Act 2012;                                                                                                                                                                                                                                                                                                                                                                                     |
| <b>“NHS Pensions”</b>                                   | means NHS Pensions (being a division of the NHS Business Services Authority) acting on behalf of the Secretary of State as the administrators of the NHS Pension Scheme or such other body as may from time to time be responsible for relevant administrative functions of the NHS Pension Scheme, including the Pensions Division of the NHS Business Services Authority;                                                                                                                                                                                  |
| <b>“NHS Pension Scheme”</b>                             | means the National Health Service Pension Scheme for England and Wales, established pursuant to the Superannuation Act 1972 and governed by subsequent regulations under that Act including the NHS Pension Scheme Regulations;                                                                                                                                                                                                                                                                                                                              |
| <b>“NHS Pension Scheme Arrears”</b>                     | means any failure on the part of the Supplier or any Sub-contractor to pay employer’s contributions or deduct and pay across employee’s contributions to the NHS Pension Scheme or meet any other financial obligations under the NHS Pension                                                                                                                                                                                                                                                                                                                |

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|                                         | Scheme or any Direction Letter in respect of the Eligible Employees;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>"NHS Pension Scheme Regulations"</b> | means, as appropriate, any or all of the National Health Service Pension Scheme Regulations 1995 (SI 1995/300), the National Health Service Pension Scheme Regulations 2008 (SI 2008/653) and any subsequent regulations made in respect of the NHS Pension Scheme, each as amended from time to time;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>"Occasion of Tax Non-Compliance"</b> | means:<br>(a) any tax return of the Supplier submitted to a Relevant Tax Authority on or after 1 October 2012 is found on or after 1 April 2013 to be incorrect as a result of:<br>(i) a Relevant Tax Authority successfully challenging the Supplier under the General Anti-Abuse Rule or the Halifax Abuse Principle or under any tax rules or legislation that have an effect equivalent or similar to the General Anti-Abuse Rule or the Halifax Abuse Principle;<br>(ii) the failure of an avoidance scheme which the Supplier was involved in, and which was, or should have been, notified to a Relevant Tax Authority under the DOTAS or any equivalent or similar regime; and/or<br>(b) any tax return of the Supplier submitted to a Relevant Tax Authority on or after 1 October 2012 gives rise, on or after 1 April 2013, to a criminal conviction in any jurisdiction for tax related offences which is not spent at the Effective Date or to a civil penalty for fraud or evasion; |
| <b>"Party"</b>                          | means the Authority or the Supplier as appropriate and Parties means both the Authority and the Supplier;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>"Payment Date"</b>                   | means twenty (20) Business Days after the last of the conditions in Clause <b>Error! Reference source not found.</b> of Part D of <b>Error! Reference source not found.</b> has been satisfied;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| <b>"Pension Benefits"</b>               | any benefits (including but not limited to pensions related allowances and lump sums) relating to old age, invalidity or survivor's benefits provided under an occupational pension scheme;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |
| <b>"Personal Data"</b>                  | shall have the same meaning as set out in the UK GDPR;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
| <b>"Policies"</b>                       | means the policies, rules and procedures of the Authority as notified to the Supplier from time to time;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>"Premature Retirement Rights"</b>    | rights to which any Transferred Staff (had they remained in the employment of an NHS Body or other employer which participates automatically in the NHS Pension Scheme) would have been or is entitled under the NHS Pension Scheme                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |



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|                                                     | Regulations, the NHS Compensation for Premature Retirement Regulations 2002 (SI 2002/1311), the NHS (Injury Benefits) Regulations 1995 (SI 1995/866) and section 45 of the General Whitley Council conditions of service, or any other legislative or contractual provision which replaces, amends, extends or consolidates the same from time to time; |
| <b>“Premises and Locations”</b>                     | has the meaning given under Clause 2.1 of Schedule 2;                                                                                                                                                                                                                                                                                                   |
| <b>“Process”</b>                                    | shall have the same meaning as set out in the UK GDPR. Processing and Processed shall be construed accordingly;                                                                                                                                                                                                                                         |
| <b>“Purchase Order”</b>                             | means the purchase order required by the Authority’s financial systems, if a purchase order is referred to in the Key Provisions;                                                                                                                                                                                                                       |
| <b>“Relevant Tax Authority”</b>                     | means HM Revenue and Customs, or, if applicable, a tax authority in the jurisdiction in which the Supplier is established;                                                                                                                                                                                                                              |
| <b>“Remedial Proposal”</b>                          | has the meaning given under Clause 13.3 of Schedule 2;                                                                                                                                                                                                                                                                                                  |
| <b>“Services”</b>                                   | means the services set out in this Contract (including, without limitation, Schedule 5 which sets out the requirements of the Authority as issued to tenderers as part of the procurement process and the Supplier’s response to these requirements);                                                                                                   |
| <b>“Services Commencement Date”</b>                 | means the date delivery of the Services shall commence as specified in the Key Provisions. If no date is specified in the Key Provisions this date shall be the Commencement Date;                                                                                                                                                                      |
| <b>“Services Information”</b>                       | means information concerning the Services as may be reasonably requested by the Authority and supplied by the Supplier to the Authority in accordance with Clause <b>Error! Reference source not found.</b> of Schedule 2 for inclusion in the Authority’s services catalogue from time to time;                                                        |
| <b>“Slavery Act”</b>                                | has the meaning given in Clause 17.2 of Schedule 2;                                                                                                                                                                                                                                                                                                     |
| <b>“Specification and Tender Response Document”</b> | means the document set out in Schedule 5 as amended and/or updated in accordance with this Contract;                                                                                                                                                                                                                                                    |
| <b>“Specific Change in Law”</b>                     | means a Change in Law that relates specifically to the business of the Authority and which would not affect a Comparable Supply;                                                                                                                                                                                                                        |
| <b>“Staff”</b>                                      | means all persons employed or engaged by the Supplier to perform its obligations under this Contract including any Sub-contractors and person employed or engaged by such Sub-contractors;                                                                                                                                                              |
| <b>“Step In Rights”</b>                             | means the step-in rights, if any, referred to in the Key Provisions;                                                                                                                                                                                                                                                                                    |

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| <b>“Sub-contract”</b>                                         | means a contract between two or more suppliers, at any stage of remoteness from the Supplier in a sub-contracting chain, made wholly or substantially for the purpose of performing (or contributing to the performance of) the whole or any part of this Contract;                                                      |
| <b>Sub-contractor</b>                                         | means a party to a Sub-contract other than the Supplier;                                                                                                                                                                                                                                                                 |
| <b>“Subsequent Transfer Date”</b>                             | means the point in time, if any, at which services which are fundamentally the same as the Services (either in whole or in part) are first provided by a Successor or the Authority, as appropriate, giving rise to a relevant transfer under TUPE;                                                                      |
| <b>“Subsequent Transferring Employees”</b>                    | means any employee, agent, consultant and/or contractor who, immediately prior to the Subsequent Transfer Date, is wholly or mainly engaged in the performance of services fundamentally the same as the Services (either in whole or in part) which are to be undertaken by the Successor or Authority, as appropriate; |
| <b>“Successor”</b>                                            | means any third party who provides services fundamentally the same as the Services (either in whole or in part) in immediate or subsequent succession to the Supplier upon the expiry or earlier termination of this Contract;                                                                                           |
| <b>“Supplier”</b>                                             | means the supplier named on the form of Contract on the first page;                                                                                                                                                                                                                                                      |
| <b>“Supplier Code of Conduct”</b>                             | means the code of that name published by the Government Commercial Function originally dated September 2017, as may be amended, restated, updated, re-issued or re-named from time to time;                                                                                                                              |
| <b>“Supplier Net Zero Corporate Champion”</b>                 | shall have the meaning given to the term in Clause <b>Error! Reference source not found.</b> of Schedule 1;                                                                                                                                                                                                              |
| <b>“Supplier Personnel”</b>                                   | means any employee, agent, consultant and/or contractor of the Supplier or Sub-contractor who is either partially or fully engaged in the performance of the Services;                                                                                                                                                   |
| <b>“Supplier Net Zero and Social Value Contract Champion”</b> | shall have the meaning given to the term in Clause <b>Error! Reference source not found.</b> of Schedule 1;                                                                                                                                                                                                              |
| <b>“Term”</b>                                                 | means the term as set out in the Key Provisions;                                                                                                                                                                                                                                                                         |
| <b>“Termination Notice”</b>                                   | means a written notice of termination given by one Party to the other notifying the Party receiving the notice of the intention of the Party giving the notice to terminate this Contract on a specified date and setting out the grounds for termination;                                                               |
| <b>“Third Party”</b>                                          | means any supplier of services fundamentally the same as the Services (either in whole or in part) immediately before the Transfer Date;                                                                                                                                                                                 |

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| <b>“Third Party Body”</b>         | has the meaning given under Clause <b>Error! Reference source not found.</b> of Schedule 2;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| <b>“Third Party Employees”</b>    | means all those employees, if any, assigned by a Third Party to the provision of a service that is fundamentally the same as the Services immediately before the Transfer Date;                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| <b>“Transfer Amount”</b>          | an amount paid in accordance with Clause <b>Error! Reference source not found.</b> of Part D of <b>Error! Reference source not found.</b> and calculated in accordance with the assumptions, principles and timing adjustment referred to in Clause <b>Error! Reference source not found.</b> of Part D of <b>Error! Reference source not found.</b> in relation to those Eligible Employees who have accrued defined benefit rights in the NHS Pension Scheme or a Third Party’s Broadly Comparable scheme and elected to transfer them to the Supplier’s Broadly Comparable scheme or the NHS Pension Scheme under the Transfer Option; |
| <b>“Transfer Date”</b>            | means the Actual Services Commencement Date;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
| <b>“Transfer Option”</b>          | an option given to each Eligible Employee with either:<br>(a) accrued rights in the NHS Pension Scheme; or<br>(b) accrued rights in a Broadly Comparable scheme,<br>as at the Employee Transfer Date, to transfer those rights to the Supplier’s (or its Sub-contractor’s) Broadly Comparable scheme or back into the NHS Pension Scheme (as appropriate), to be exercised by the Transfer Option Deadline, to secure year-for-year day-for-day service credits in the relevant scheme (or actuarial equivalent, where there are benefit differences between the two schemes);                                                            |
| <b>“Transfer Option Deadline”</b> | the first Business Day to fall at least three (3) months after the notice detailing the Transfer Option has been sent to each Eligible Employee;                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| <b>“Transferred Staff”</b>        | means those employees (including Transferring Employees and any Third-Party Employees) whose employment compulsorily transfers to the Supplier or to a Sub-contractor by operation of TUPE, the Cabinet Office Statement or for any other reasons, as a result of the award of this Contract;                                                                                                                                                                                                                                                                                                                                             |
| <b>“Transferring Employees”</b>   | means all those employees, if any, assigned by the Authority to the provision of a service that is fundamentally the same as the Services immediately before the Transfer Date;                                                                                                                                                                                                                                                                                                                                                                                                                                                           |

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| <b>"TUPE"</b>    | means the Transfer of Undertakings (Protection of Employment) Regulations 2006 (2006/246) and/or any other regulations or other legislation enacted for the purpose of implementing or transposing the Acquired Rights Directive (77/187/EEC, as amended by Directive 98/50 EC and consolidated in 2001/23/EC) into English law; |
| <b>"UK GDPR"</b> | has the meaning given to it in section 3(10) (as supplemented by section 205(4)) of the Data Protection Act 2018; and                                                                                                                                                                                                            |
| <b>"VAT"</b>     | means value added tax chargeable under the Value Added Tax Act 1994 or any similar, replacement or extra tax.                                                                                                                                                                                                                    |

- 1.2 References to any Law shall be deemed to include a reference to that Law as amended, extended, consolidated, re-enacted, restated, implemented or transposed from time to time.
- 1.3 References to any legal entity shall include anybody that takes over responsibility for the functions of such entity.
- 1.4 References in this Contract to a "Schedule", "Appendix", "Paragraph" or to a "Clause" are to schedules, appendices, paragraphs and clauses of this Contract.
- 1.5 References in this Contract to a day or to the calculation of time frames are references to a calendar day unless expressly specified as a Business Day.
- 1.6 Unless set out in the Commercial Schedule as a chargeable item and subject to Clause 27.6 of Schedule 2, the Supplier shall bear the cost of complying with its obligations under this Contract.
- 1.7 The headings are for convenience only and shall not affect the interpretation of this Contract.
- 1.8 Words denoting the singular shall include the plural and vice versa.
- 1.9 Where a term of this Contract provides for a list of one or more items following the word "including" or "includes" then such list is not to be interpreted as an exhaustive list. Any such list shall not be treated as excluding any item that might have been included in such list having regard to the context of the contractual term in question. General words are not to be given a restrictive meaning where they are followed by examples intended to be included within the general words.
- 1.10 Where there is a conflict between the Supplier's responses to the Authority's requirements (the Supplier's responses being set out in Schedule 5) and any other part of this Contract, such other part of this Contract shall prevail.
- 1.11 Where a document is required under this Contract, the Parties may agree in writing that this shall be in electronic format only.
- 1.12 Where there is an obligation on the Authority to procure any course of action from any third party, this shall mean that the Authority shall use its reasonable endeavours to procure such course of action from that third party.
- 1.13 Any guidance notes in grey text do not form part of this Contract.
- 1.14 Any Breach Notice issued by a Party in connection with this Contract shall not be invalid due to it containing insufficient information. A Party receiving a Breach Notice ("**Receiving Party**") may ask the Party that issued the Breach Notice ("**Issuing Party**") to provide any further information in relation to the subject matter of the Breach Notice that it may reasonably require to enable it to understand the Breach

Notice and/or to remedy the breach. The Issuing Party shall not unreasonably withhold or delay the provision of such further information as referred to above as may be requested by the Receiving Party but no such withholding or delay shall invalidate the Breach Notice.

- 1.15 Any terms defined as part of a Schedule or other document forming part of this Contract shall have the meaning as defined in such Schedule or document.
- 1.16 For the avoidance of doubt, and to the extent not prohibited by any Law, the term “expenses” (as referred to under any indemnity provisions forming part of this Contract) shall be deemed to include any fine and any related costs imposed by a commissioner, regulator or other competent body.
- 1.17 Any reference in this Contract which immediately before Exit Day was a reference to (as it has effect from time to time):
  - i. any EU regulation, EU decision, EU tertiary legislation or provision of the EEA agreement (“EU References”) which is to form part of domestic law by application of section 3 of the European Union (Withdrawal) Act 2018 shall be read on and after Exit Day as a reference to the EU References as they form part of domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 as modified by domestic law from time to time; and
  - ii. any EU institution or EU authority or other such EU body shall be read on and after Exit Day as a reference to the UK institution, authority or body to which its functions were transferred.

## **Service Specification (A) for the Provision of Intrauterine Device (IUD/IUS) Services in General Practice Settings**

**Commissioner:** Royal Devon University Healthcare NHS Foundation Trust (RDUH)

**Service Provider:** Participating General Practice (under subcontract agreement)

**Service Period:** 1 October 2025 – 30 September 2027 (subject to annual review)

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### **1. Introduction and Background**

- 1.1 This specification outlines the delivery of counselling, fitting, checking, problem-solving, and removal of intrauterine devices (IUDs) and intrauterine systems (IUS) for both contraceptive and non-contraceptive purposes in general practice settings.
- 1.2 The service supports NHS priorities in sexual and reproductive health, reducing unplanned pregnancies, and providing therapeutic options for gynaecological conditions.
- 1.3 Delivery must comply with the latest NICE Guidance (QS129) and Faculty of Sexual and Reproductive Healthcare (FSRH) Clinical Guidelines on Intrauterine Contraception (2019).
- 1.4 Devon Integrated Care Board is responsible for commissioning the provision of Non-Contraceptive Intrauterine Device (IUD/IUS) services and has contracted the responsibility for provision of those Sexual Health services to RDUH which, as per current arrangements, is here-in sub-contracting that work to local General Practitioners

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### **2. Aims and Objectives**

- 2.1 Improve access to high-quality intrauterine contraception and gynaecological support via primary care.
- 2.2 Support uptake of long-acting reversible contraception (LARC) and provide timely emergency contraception when indicated.
- 2.3 Ensure clinical safety, informed patient choice, and continuity of care.

---

### **3. Scope of Service**

#### **3.1 Eligible Population**

- All women of reproductive age registered with a Devon-based GP practice (excluding Plymouth City Council area) requesting contraceptive advice will be eligible for assessment for suitability for intra uterine contraception. Women should access this via their registered practice in the first instance. This includes any woman assessed as suitable for IUS for non-contraceptive clinical indications (e.g. heavy menstrual bleeding and HRT).

### 3.2 Service Components

Providers will:

- Offer evidence-based counselling on contraceptive and therapeutic use of IUD/IUS.
- Provide fitting, follow-up checks (including six-week post-fitting reviews), troubleshooting, and removal.
- The practice will be required to submit quarterly activity data via email to [rdh.primarycareinvoices.dsh@nhs.net](mailto:rdh.primarycareinvoices.dsh@nhs.net) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
- Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.
- Refer patients to specialist services when clinically appropriate.

### 3.3 Training and Competence

- Clinicians must hold the FSRH Letter of Competence in Intrauterine Techniques (LoC IUT).
- GPs may delegate IUD/IUS removal to appropriately trained Registered Nurses under supervision.
- Providers must ensure that they and their sub-contractors (if used) comply with NHS Safeguarding (Level 3), Primary Care Infection Control Standards, Consent, and Information Governance training.

### 3.4 Service Delivery Model

For the duration of the contract period, general practice may opt to provide the service in one of two ways:

- Practices may offer services solely to their registered practice population list
- Practices may work collaboratively with one or more local general practices to establish a service provision for their populations (e.g. through a Primary Care Network Service Level Agreement arrangement or similar).

### 3.5 Post-fitting Checks

- 6 weeks post fitting checks are no longer routinely required however, if within a 6-week period post fitting, if the concern is related to the IUD, it is expected that the patient would return to the fitting practice for follow up. At the time of fitting there is an expectation that women will be taught how to check their coil threads and advised regarding potential red flag concerns for which they will require clinician follow up regardless of time post fit, which may include missing threads and unexpected change in bleed pattern or pain etc.
- Where a post-fitting check is undertaken, the activity is included in the specification with tariff reflecting this activity, hence the provider that fits the device is expected to carry out the check if required.

**Post-fitting IUD/IUS six-week coil checks for women who have had the device fitted by another provider outside of the GP practice.**

- In a very limited number of circumstances, the woman may not be able to return to the initial fitting service and present at their own GP practice. Any GP practice that is currently commissioned to provide the full IUD/IUS: fitting, checking, problem solving and removal of IUDs (for contraceptive and non-contraceptive purposes) service, is able to provide this service where indicated.

For the practice to be eligible for payment, both of the following conditions should be met:

1. The women requesting a follow up check had the IUD/IUS device fitted by an out-of-area provider e.g. contraception service, termination of pregnancy service or out of area GP practice.
2. AND, are unable to return to that fitter for the requested check.

### 3.6 IUDs fitted for non-contraception/medical indications

The IUS may be fitted for medical indications (e.g. heavy menstrual bleeding or HRT) where clinically indicated.

RDUH undertakes to manage reporting and payment processes associated with IUD/IUS fitting and removal activity for both contraception and non-contraception purposes. Practices are required to submit quarterly data as outlined in the Specification (Schedule 5) to enable this process.

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## 4. Service Standards

The following national and local standards/guidance have informed the clinical review of this service specification. GP and Nurse fitters who undertake this service are expected **to be familiar** with these clinical documents and any other relevant and succession documents:

### 4.1 National Standards

- NICE QS129: Contraception
- FSRH Guideline: Intrauterine Contraception (March 2023, amended January 2025)  
  
Comprehensive clinical guidance on the use of copper IUDs and levonorgestrel-releasing intrauterine systems (LNG-IUS).  
[Download the full guideline \(PDF\)](#)
- FSRH Intrauterine Contraception Resource Page  
[FSRH IUC Resource Page](#)
- FSRH Standards and Guidelines Hub  
Central access point for all FSRH clinical guidelines, service standards, and CEU documents.  
[FSRH Standards and Guidelines](#)
- UK Medical Eligibility Criteria (UKMEC)  
Integrated into FSRH guidance, UKMEC provides risk-based eligibility criteria for IUD use in various medical conditions  
[UKMEC – Faculty of Sexual and Reproductive Healthcare \(FSRH\)](#)
- For a quick reference, you can also access the summary table that includes eligibility criteria for copper IUDs (Cu-IUD) and hormonal IUDs (LNG-IUS):  
[UKMEC Summary Table – Hormonal and Intrauterine Contraception \(PDF\)](#)
- Faculty of Sexual and Reproductive Sexual Health (FSRH) *CEU statement on antibiotic cover for urgent insertion of intrauterine contraception in women at high risk of STI* (May 2019)  
<https://www.fsrh.org/standards-and-guidance/documents/fsrh-ceu-statement-on-antibiotic-cover-for-urgent-insertion-of/>
- Faculty of Sexual and Reproductive Sexual Health (FSRH) *CEU Contraception Choices for Young People: Section 3 Legal and Ethical Framework*. March 2010 (Amended May 2019).



<https://www.fsrh.org/standards-and-guidance/documents/cec-ceu-guidance-young-people-mar-2010/>

- Primary Care infection control standards  
<https://www.infectionpreventioncontrol.co.uk/gp-practices/policies/>

#### 4.2 Local Standards for guidance

- Devon Children and Families Partnership  
<https://www.dcfp.org.uk/>
- Devon Safeguarding Adults Partnership  
<https://www.devonsafeguardingadultspartnership.org.uk/>
- Torbay Safeguarding Children Partnership  
<http://torbaysafeguarding.org.uk/>
- Torbay Safeguarding Adults  
<https://www.torbayandsouthdevon.nhs.uk/services/safeguarding-adults/>
- Reporting of incidents via NHS-approved reporting systems  
<https://www.england.nhs.uk/long-read/incident-reporting-system/>

### 5. Outcome and Quality Measures

RDUH are required to ensure that the quality of commissioned services compares well with any national or local standards. This helps commissioners to identify gaps and opportunities for service improvement, and work collaboratively with service providers to understand how to improve care. With this in mind:

- The provider will be required to submit quarterly activity data via email to [rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
- Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.

| IUD/S for Contraception     |                              | Activity |
|-----------------------------|------------------------------|----------|
|                             | Number of removals           |          |
|                             | Number of Fits               |          |
|                             | Number of removal and re-fit |          |
|                             |                              |          |
| IUD/S for non-contraception | Number of removals           |          |
|                             | Number of Fits               |          |
|                             | Number of removal and re-fit |          |

|       |                                |  |
|-------|--------------------------------|--|
| IUD/S | Number of incorrect insertions |  |
|       | Number of Uterine perforations |  |
|       | Number of device migrations    |  |

|                                          |                                                                                                                                   |  |
|------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------|--|
| <b>Relating to both IUD and Implants</b> | Number of referrals to specialist removal or contraception services                                                               |  |
|                                          | Number of GP/nurse fitters in Practice holding the required accreditation (FSRH Letter of Competence IUT Certification)           |  |
|                                          | Number of incidents or formal complaints received relating to this service provision (Please note outcome in additional comments) |  |

## 6. Information Governance

- Providers must comply with UK GDPR and the Data Protection Act 2018.
- All data sharing must align with the NHS Data Security and Protection Toolkit.
- Use of SNOMED codes is required for accurate activity recording.

## 7. Payment and Funding

1. Payment will be per procedure in accordance with the locally agreed tariff under the subcontract.

|                                             | <b>Rates RDUH 2025/26<br/>Fee per case</b> |
|---------------------------------------------|--------------------------------------------|
| <b>IUD/S Fits</b>                           | £100                                       |
| <b>IUD/S removals</b>                       | £45                                        |
| <b>IUD/S removal and re-fit</b>             | £145                                       |
| <b>IUD/S follow up for Out of Area case</b> | £19.20                                     |
| <b>Implant Fits</b>                         | £50                                        |
| <b>Implant Removals</b>                     | £50                                        |
| <b>Implant removal and re-fit</b>           | £100                                       |

2. The provider will be required to submit quarterly activity data via email to both [rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) and [royaldevon.invoices@proactiscapture.com](mailto:royaldevon.invoices@proactiscapture.com) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
3. Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.

## 8. Premises

The service must:

- Be delivered in a CQC-registered general practice premises.
- Ensure the clinical environment is appropriate for the clinical procedure with adequate lighting and an appropriate examination couch which meets infection control standards.

## **Appendix 1: Inter-Practice Referral Process**

**Where appropriate, practices should have defined processes to describe inter-practice referrals through protocols and Service Level Agreements or similar**

Please see Appendix 1 for Example

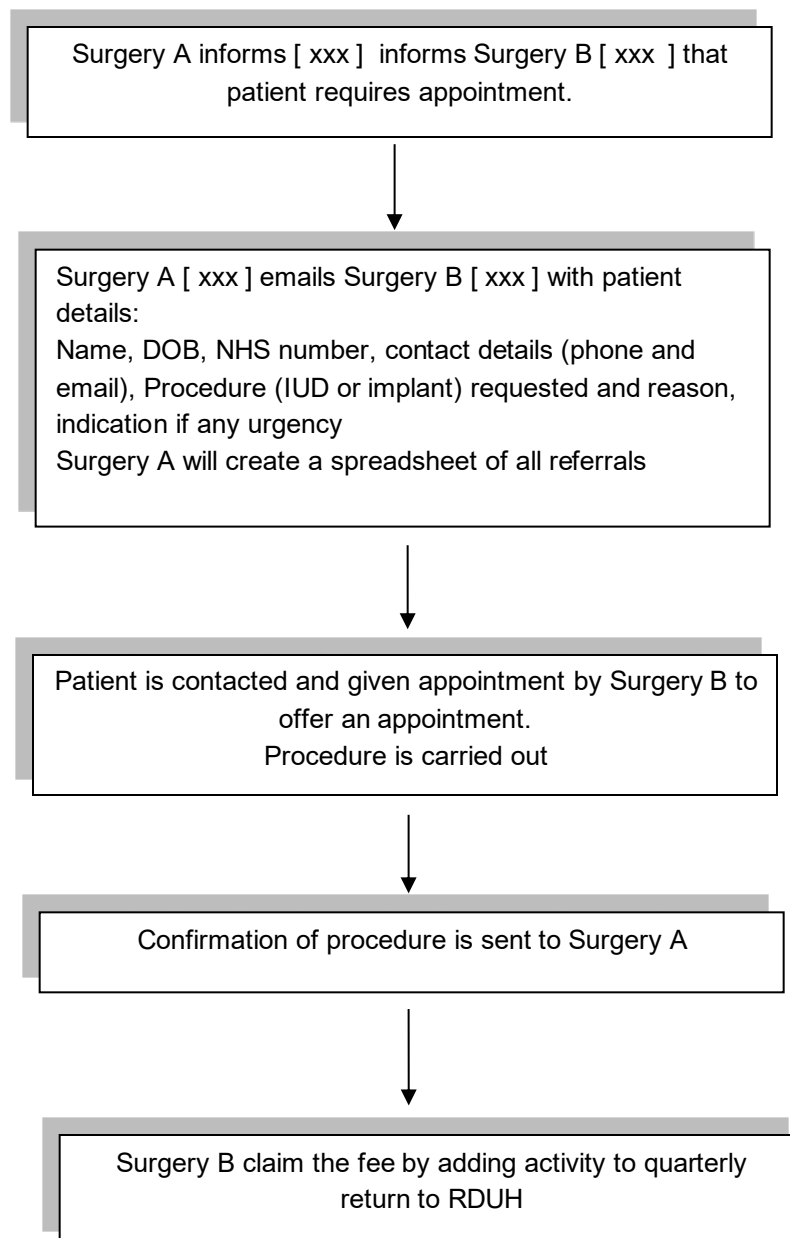
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**Note:** This specification forms part of the subcontract agreement with RDUH. It must be read alongside the remainder of the sub-contract,

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## Appendix 1: Example of Inter-Practice Referral Template

### [ xxx ] Surgery IUD / Implant Patient Referral Protocol



#### Key Contacts:

[Surgery A] – email

[Surgery B] - email

## **Schedule 5: Specification B**



### **Service Specification (B) for the Provision of Sub-Dermal Contraceptive Implant (SDI) Services in General Practice Settings**

**Commissioner:** Royal Devon University Healthcare NHS Foundation Trust (RDUH)

**Service Provider:** Participating General Practice (under subcontract agreement)

**Service Period:** 1 October 2025 – 30 September 2028 (subject to annual review)

---

#### **1. Introduction and Background**

1.1 Devon and Torbay public health commissioners are responsible for commissioning the delivery of counselling, fitting, checking, management, and removal of sub-dermal contraceptive implants (SDI) within general practice settings and has contracted the responsibility for provision of those Sexual Health services to RDUH which, as per current arrangements, is here-in sub-contracting that work to local General Practitioners.

1.2 Improving access to long-acting reversible contraception (LARC) is a key component of the NHS Sexual and Reproductive Health Strategy, contributing to reduced unplanned pregnancies, especially among women under 25.

1.3 This service will comply with the latest NICE Guidance (QS129) and Faculty of Sexual and Reproductive Healthcare (FSRH) Clinical Guidelines.

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#### **2. Aims and Objectives**

2.1 Ensure timely and equitable access to SDI services within primary care for eligible individuals.

2.2 Increase the uptake of long-acting reversible contraception (LARC) as a safe and effective method of contraception.

2.3 Support patient choice, informed consent, and continuity of contraceptive care.

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#### **4. Scope of Service**

##### **3.1 Eligible Population**

- All women of reproductive age registered with a Devon-based GP practice (excluding Plymouth City Council area) and requesting contraceptive advice, assessment, or management.

### 3.2 Service Components

The provider will:

- Offer patient-centred counselling on all contraceptive options including long-acting reversible contraception (LARC)
- Assess suitability and provide sub-dermal contraceptive implants (SDI) insertion, removal, and follow-up.
- Maintain accurate clinical records using EMIS/SystemOne (as applicable).
- Submit quarterly activity data via an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report. Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.
- Refer patients to specialist contraception services where clinically appropriate.

### 3.3 Training and Competence

- All practitioners undertaking SDI procedures must hold the FSRH Letter of Competence in SDI Insertion and Removal.
- Providers must ensure compliance with NHS safeguarding (Level 3), Primary Care infection control standards, consent, and information governance training.

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## 4. Service Delivery Model

4.1 For the duration of the contract period, general practice may opt to provide the service in one of two ways:

- Practices may offer services solely to their registered practice population list
- Practices may work collaboratively with one or more local general practices to establish a dedicated session for population service provision (e.g. through a Primary Care Network Service Level Agreement arrangement).

---

## 5. Applicable Service Standards

The following national and local standards/guidance have informed the clinical review of this service specification. GP and Nurse fitters who undertake this service are expected to be familiar with these clinical documents and any other relevant and succession documents:

### 5.1 National Standards

- NICE QS129: Contraception
- FSRH Clinical Guideline: Progestogen-only Implant (current edition)
- NHS Standard Contract: Service Conditions (SC1, SC12, SC28, SC33)

### 5.2 Local Requirements

- Primary Care infection control standards  
<https://www.infectionpreventioncontrol.co.uk/gp-practices/policies/>
- Devon Children and Families Partnership  
<https://www.dcfp.org.uk/>

- Devon Safeguarding Adults Partnership  
<https://www.devonsafeguardingadultspartnership.org.uk/>
- Torbay Safeguarding Children Partnership  
<http://torbaysafeguarding.org.uk/>
- Torbay Safeguarding Adults  
<https://www.torbayandsouthdevon.nhs.uk/services/safeguarding-adults/>
- Reporting of incidents via NHS-approved reporting systems  
<https://www.england.nhs.uk/long-read/incident-reporting-system/>

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## 6. Outcome and Quality Measures

RDUH are required to ensure that the quality of commissioned services compares well with any national or local standards. This helps commissioners to identify gaps and opportunities for service improvement, and work collaboratively with service providers to understand how to improve care. With this in mind, the provider will be required to report on the outcome indicators listed below:

|                 |                                                                                                                |  |
|-----------------|----------------------------------------------------------------------------------------------------------------|--|
| <b>Implants</b> | Number of removals                                                                                             |  |
|                 | Number of Fits                                                                                                 |  |
|                 | Number of removal and re-fit                                                                                   |  |
|                 | Incorrect insertions/migrations                                                                                |  |
|                 | Referrals to specialist removal or contraception services                                                      |  |
|                 | GP/nurse fitters in primary care hold the required accreditation (FSRH Letter of Competence IUT Certification) |  |
|                 | Any formal complaints received relating to this service provision (and outcome)                                |  |

- The practice will be required to submit quarterly activity data via email on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
- Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.

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## 7. Information Governance

- Providers must comply with the Data Protection Act 2018 and UK GDPR.
  - Data sharing must align with the NHS Data Security and Protection Toolkit.
  - Clinical documentation should be coded in line with NHS SNOMED standards.
-

## 8. Payment and Funding

- Payment will be made per procedure in accordance with the agreed local tariff.

|                                   | <b>Proposed Rates RDUH 2025/26</b> |
|-----------------------------------|------------------------------------|
|                                   | <b>Fee per case</b>                |
| <b>Implant Fits</b>               | £50                                |
| <b>Implant Removals</b>           | £50                                |
| <b>Implant removal and re-fit</b> | £100                               |

- The provider will be required to submit quarterly activity data via email to both [rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) and [royaldevon.invoices@proactiscapture.com](mailto:royaldevon.invoices@proactiscapture.com) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
- Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.

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## 9. Premises

The service must:

- Be delivered in a CQC-registered general practice premises.
- Ensure the clinical environment is appropriate for the clinical procedure with adequate lighting and an appropriate examination couch which meets infection control standards.

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### Appendix 1: Inter-Practice Referral Template

Where appropriate, practices should have defined processes to describe inter-practice referrals through protocols and Service Level Agreements

Please see Appendix 1 for example

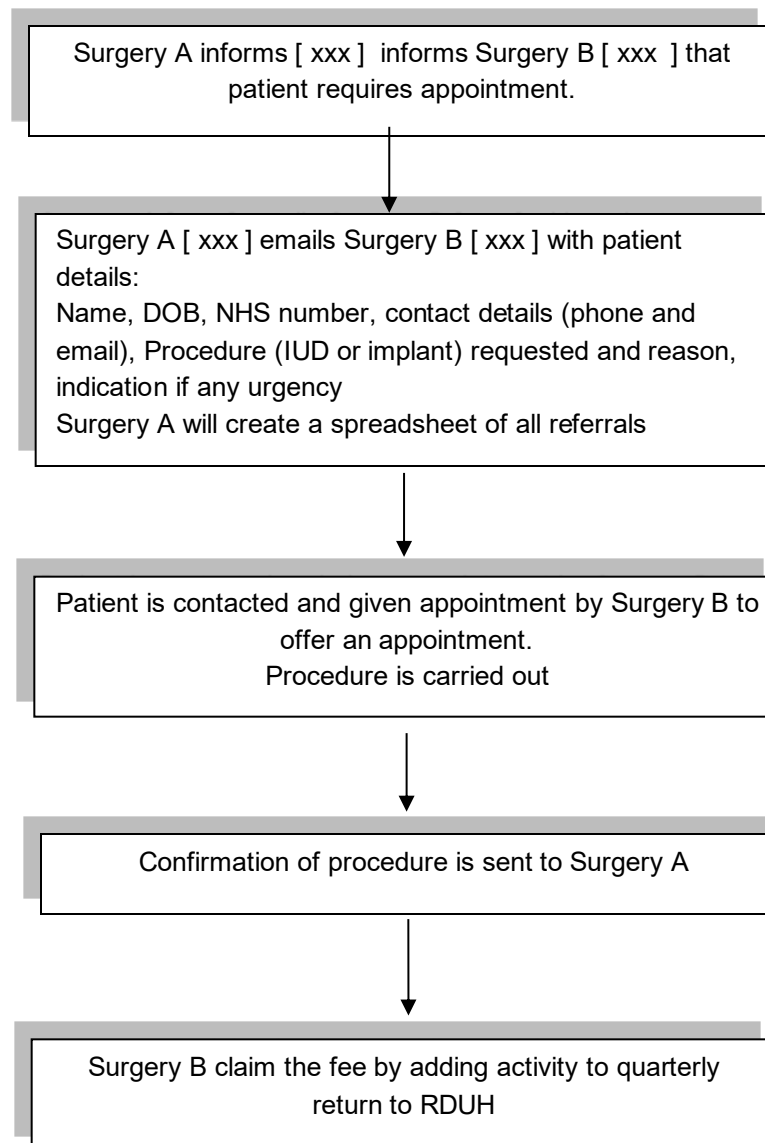
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**Note:** This specification forms part of the subcontract agreement with RDUH. It must be read alongside the remainder of the sub-contract, associated schedules and relevant national clinical guidance.



**Appendix 1: EXAMPLE - Inter-Practice Referral Template**

**[     xxx   ] Surgery IUD / Implant  
Patient Referral Protocol**



Key Contacts:

[Surgery A] – email

[Surgery B] - email

## **Schedule 6: Commercial Schedule**

1. Payment will be per procedure in accordance with the locally agreed tariff.

|                                             | <b>Rates RDUH 2025/26<br/>Fee per case</b> |
|---------------------------------------------|--------------------------------------------|
| <b>IUD/S Fits</b>                           | £100                                       |
| <b>IUD/S removals</b>                       | £45                                        |
| <b>IUD/S removal and re-fit</b>             | £145                                       |
| <b>IUD/S follow up for Out of Area case</b> | £19.20                                     |
| <b>Implant Fits</b>                         | £50                                        |
| <b>Implant Removals</b>                     | £50                                        |
| <b>Implant removal and re-fit</b>           | £100                                       |

- 2 The payment profile for this Contract shall be quarterly in arrears after submitting activity data, as an activity related service.
- 3 The provider will be required to submit quarterly activity data via email to both [rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) and [royaldevon.invoices@proactiscapture.com](mailto:royaldevon.invoices@proactiscapture.com) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.
- 4 Over the next 12 months the aim is to move towards electronic reporting via the Ardens system.

### **Invoicing Requirements**

- 2.1 The invoice must be addressed to the Royal Devon University Healthcare NHS Foundation Trust.
- 2.2 The invoice must clearly identify the date, GP Practice name, relevant bank details and full account of activity as Primary Care LARC Activity Report (Schedule 9), during the relevant invoicing period.
- 2.3 Each invoice, and the completed Activity Report (schedule 9) should be emailed to both [rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) and [royaldevon.invoices@proactiscapture.com](mailto:royaldevon.invoices@proactiscapture.com) on an excel spreadsheet as per Schedule 9, Primary Care LARC Activity Report.

## **Schedule 7: Staff Transfer**

### **Part A: No staff shall transfer to the Supplier under TUPE**

- 1.1 The Supplier shall not allow the Services to occupy more than 40% of any individual's work. If the Services being performed by an individual approach 40% of that individual's work, the Supplier shall inform the Authority within four (4) weeks.

### Schedule 8: **Expert Determination**

NOT APPLICABLE

### Schedule 9: **Primary Care LARC Activity Report**

The Supplier must submit via email, quarterly activity data, using the Primary Care LARC Activity Report template provided. The email addresses to be used are:  
[rduh.primarycareinvoices.dsh@nhs.net](mailto:rduh.primarycareinvoices.dsh@nhs.net) and [royaldevon.invoices@proactiscapture.com](mailto:royaldevon.invoices@proactiscapture.com)



Primary Care LARC  
activity report - MAST